THE SHE LIST

LAW

A MIND OF HER OWN

Justice B.V. Nagarathna, *61*
Judge, Supreme Court of India

JUSTICE BANGALORE VENKATARAMIAH NAGARATHNA HAS often chosen the path untrodden. On January 2, the Supreme Court judge, who is known to be firm yet calm in the courtroom, declared that the 2016 demonetisation exercise was "unlawful" as the proposal was initiated by the Union government and not the central board of the Reserve Bank of India. The youngest and the only woman in the five-judge bench, she was the sole dissenting voice.

The next day, she again differed on several points with the four other judges in a constitution bench that was examining whether guidelines should be framed to prevent ministers and other political leaders from making derogatory and hurtful public statements. Her judgment reaffirmed how the contours of permissible speech would be governed by the imperative of nurturing a peaceful, equal, dignity-affirming and fraternal social order. More recently, in October, in response to a woman's petition for permission to abort her 26-week foetus, the apex court judge once again came up with a differing opinion from the senior judge, saying that the petitioner's decision not to continue with the pregnancy must be respected.

A history and law graduate from Delhi, Justice Nagarathna got enrolled as an advocate in Karnataka in 1987. In 2008, she was appointed as an additional judge in Karnataka High Court—only the second woman in its history.

Even as a judge of the high court, where she disposed of more than 40,000 cases, many of her judgments stood out for their social impact. Hearing the case of a person born out of wedlock and seeking compassionate appointment, she observed, "...there may be illegitimate parents, but no illegitimate children." In 2020, while

ACCOMPLISHMENT

Independent-minded, she never shies away from expressing dissenting opinions on important legal matters

